

MASTER SERVICES AGREEMENT

between MegaCloud Inc. ("Vendor") and Customer Corp. ("Customer")
Effective Date: January 1, 2022

1. SERVICES

1.1 Vendor shall provide Customer with access to the MegaCloud enterprise cloud and data platform (the "Services") in accordance with the order forms and amendments executed by the parties from time to time.

1.2 Vendor shall use commercially reasonable efforts to maintain 99.9% uptime for the Services, measured monthly.

2. TERM

2.1 This Agreement commences on the Effective Date and continues for an initial term of thirty-six (36) months (the "Initial Term").

3. RENEWAL

3.1 This Agreement shall automatically renew for successive one-year terms unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

4. CUSTOMER OBLIGATIONS

4.1 Customer shall provision only authorized users and shall promptly report any material change in seat count to Vendor's billing system.

5. DATA AND SECURITY

5.1 Vendor shall maintain industry-standard technical and organizational safeguards for Customer data processed on the Services.

6. FEES AND PAYMENT

6.1 Customer shall pay all fees in accordance with this Section 6 and any amendments hereto.

6.2 Customer shall pay \$15.00 per active seat per month, invoiced monthly in arrears.

6.3 All invoices are due within thirty (30) days of the invoice date.

6.4 Vendor shall provide Customer with an itemized invoice showing seat counts, applicable discounts, and any one-time charges.

7. LIMITATION OF LIABILITY

7.1 Neither party's aggregate liability under this Agreement shall exceed the fees paid by Customer in the twelve (12) months preceding the claim.

8. GOVERNING LAW

8.1 This Agreement is governed by the laws of the State of Delaware.

9. ENTIRE AGREEMENT

9.1 This Agreement, together with all amendments and order forms executed by both parties, constitutes the entire agreement between the parties with respect to its subject matter. Amendments in the form of an executed email exchange between authorized representatives of both parties shall be treated as a valid written amendment.